ERASURE AND RECOGNITION

Native Peoples of Virginia and the Struggle for Federally Recognized Sovereignty in the 21st Century

DAVID T. WATKEYS

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Contents

INTRODUCTION 2

SETTING THE STAGE: THE LAST 500 YEARS 5

THE ODDS: THE RECOGNITION PROCESS 12

OVERCOMING THE ODDS 14

CONCLUSION 17

BIBLIOGRAPHY 20

INTRODUCTION

The 2010s were a major decade for Indigenous groups in Virginia. On July 2, 2015, the Bureau of Indian Affairs (BIA) made its final determination of the case of the renowned Pamunkey Indian Tribe. They achieved Federal Recognition (FR) on January 28, 2016[1] and were approved under President Obama. This was a momentous decision, making headlines nationally.[2] Another rousing success was announced in January 2018, as the Monacan Indian Nation and five other Indigenous groups of Virginia were Federally recognized through unanimous congressional approval and signed by the White House under President Trump. These victories, while encouraging, are unconscionably delayed. After all, the Pamunkey and the Monacans are two of the first peoples contacted by English settlers in what is now called the United States. How did it take 400+ years to have a government-to-government relationship with these groups? Why did these two groups go different routes to be recognized? What does FR mean, and what do you have to do to get it?

Federal Recognition/Acknowledgement is a status granted by the Federal Government of the United States (USFG), usually via the BIA under the direction of the Department of the Interior. To have their sovereignty recognized in this way, the petitioners must meet a series of criterion as set forth by the USFG. Once those criteria are met, the newly recognized Indigenous group will have access to funds and resources that can help them recover, preserve, and protect their culture and its artifacts. For example, those with recognition have access to agents of the National Park Service that help pursue grants and help reclaim artifacts that are in museums.[3] They can also access historic preservation officers, people who survey and preserve land, help conduct

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[1] "Pamunkey Indian Tribe," Pamunkey Indian Tribe, https://pamunkey.org/

[2] Joe Heim, "A Renowned Virginia Indian Tribe Finally Wins Federal Recognition," *Washington Post*, July 2, 2015, https://www.washingtonpost.com/local/a-renowned-virginia-indian-tribe-finally-wins-federal-recognition/2015/07/02/40cc0dd4-200a-11e5-aeb9-a411a84c9d55_story.html

[3] "Tribal Heritage Grants," National Park Service, last modified March 1, 2022, https://www.nps.gov/subjects/historicpreservationfund/thg-grant-info.htm

archeology, plan tribal projects, document oral history, preserve cultural traditions, and strengthen education programs.[4] This status imparts with it privileges and protections, while promulgating a government-to-government relationship with those being recognized, fundamentally changing the power dynamic between the USFG and the sovereign Indigenous entity. Recognition of Native people's inherent sovereignty is sometimes the difference between utter erasure of a culture or the continuation of that culture. This is of life and death importance.

The subject of sovereignty is an important concept to have as a basis for this discussion. Sovereignty is difficult to define in general and political scientists constantly argue about what it means and what the implications of sovereignty are. This discussion will use a basic definition: sovereignty is the authority of peoples to govern themselves. Clara Sue Kidwell and Alan Velie have a clear perspective on sovereignty, "Sovereignty is a concept of which the meaning has been continually negotiated throughout the history of contact with European colonizers because, although it is held to be an inherent right, its political effect depends upon its recognition by other sovereigns."[5] This means that sovereignty and recognition of sovereignty are linked but not synonymous. Sovereignty is an inherent right of a group of people to govern, and the other is outside recognition by a community of others who claim sovereignty. The USFG needs to recognize the people who were here first as independent sovereigns.

This paper will focus on these two case studies of different cultures who found themselves in contact with colonizers in the early days of American colonization and have since sought FR. It will also provide historical context by proving a pattern of abuse by government officials towards Native peoples of what is now called Virginia, by the government at both the state and national

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[4] "Federally Recognized Indian Tribes and Resources for Native Americans," About the U.S. and its History, USA.gov, accessed October 2, 2022, https://www.usa.gov/tribes#item-37647

[5] Clara Sue Kidwell and Alan Velie, "Tribal Sovereignty," in *Native American Studies*, (Edinburgh: Edinburgh University Press, 2005), 61-80. http://www.jstor.org/stable/10.3366/j.ctvxcrbxb.9

level and demonstrate how those abuses impact recognition of those groups. Due to the intentional erasure by Virginia and the USFG, and accidental loss of records, it is extremely difficult, if not impossible, for some to prove their status as a historically sovereign people as demanded by the BIA. This results in a systematic approach to recognizing Native groups that fails to account for differences in historical record keeping, places an over-emphasis on the value of European-inspired record systems, while failing to reasonably account for the adaptive nature of cultures as a concept. Ignoring these factors leads to an inequitable treatment of Native peoples.

The Monacans and Pamunkey make for excellent examples for several reasons. First, both were present when The United States was being "settled" and have had relatively constant contact with settlers and the USFG. The land that the English found themselves landing on was not empty; quite the opposite is true. Native peoples have been here for millennia, and those Native people were brutalized for the last 500 years. Second, both of these Indigenous governments recently had successful attempts at the dubious task of becoming recognized by the USFG but due to circumstances of history, were forced to do so via different approaches. Third, these sovereign peoples had similar pressures applied to their existence and suffered somewhat similar fates at the hands of government policy and officials. If these Native peoples had such a difficult time becoming recognized even when contextualized with some of the earliest documented instances of first contact, then clearly the system of recognition is not properly calibrated. The BIA has a duty to not only protect funds and privileges earmarked for Native Peoples, but it also has a responsibility to make sure that all people who logically deserve access to those funds and privileges get them.

It is vital that this process be equitable for Native applicants. Considering the predominance of historical records that we have on cruelty toward Native peoples, the recorded acts of erasure including those by eugenicists like Walter Plecker, Congress during the Era of Termination, and

documented loss of records in events like the American Civil War, the USFG is duty-bound to these cultures to protect them from further damage while simultaneously prioritizing their needs and proposals. Native Americans deserve to have a leading seat at the table of policy when it comes to governance and recognition. No one knows their history better, and it is hubris to assume that politicians and bureaucrats could possibly do what is in the best interest of these cultures without leadership from those cultures. To do so is to perpetuate colonialism and further victimize Native Americans in a fashion akin to what has been done for the last 500 years.

SETTING THE STAGE: THE LAST 500 YEARS

It is impossible to talk about concepts like FR and exclude the history of violence and death that were precipitated upon the Native peoples of the Americas. That begins with the Columbian Exchange. Before 1492, the lands of Turtle Island[6] were a self-contained, independent place, and the people who lived there were sovereign entities with their own histories, traditions, and ways of living. From the Columbia Exchange in 1492 to when Jamestown was founded in 1607, there was a catastrophic loss of life in the Americas brought on by diseases from the Spanish. The numbers are astounding, it is estimated that there was an 80-90% mortality rate for those Native Americans exposed.[7]

Anthropologist Henry Dobyns provides visual weight to this invisible tide of plagues: "Before Europeans initiated the Columbian Exchange of germs and viruses, the peoples of the Americas suffered no smallpox, no measles, no chickenpox, no influenza, no typhus, no typhoid or parathyroid fever, no diphtheria, no cholera, no bubonic plague, no scarlet fever, no whooping cough, and no malaria."[8] Native Americans received a dozen or more pandemics at once that

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[6] Later renamed America by European colonizers, honoring Amerigo Vespucci an early Italian Explorer of the continent.

[7] Nathan Nunn and Nancy Qian, "The Columbian Exchange: A History of Disease, Food, and Ideas," *Journal of Economic Perspectives* 24, no. 2 (2010): 165. https://scholar.harvard.edu/files/nunn/files/nunn_qian_jep_2010.pdf

[8] Henry F. Dobyns, "An Appraisal of Techniques with a New Hemispheric Estimate," *Current Anthropology* 7, no. 4, (Sep 1966): 34 http://www.jstor.org/stable/2740306.

Eurasians and Africans had been dealing with gradually for at least 10,000 years. The Spanish initiated biological warfare that was responsible for repugnant suffering and multitudinous genocides.[9] It was under these extreme circumstances that both the Pamunkey and Monacans, along with many other Native peoples, would have to navigate their interactions with later European colonists.

In 1607, the Indigenous peoples who were still surviving in the area had more pressure applied from the east as the pre-enlightenment conquerors/explorers made landfall. Some groups like the Pamunkey engaged in direct interaction with these newcomers and have a history of contracts and treaties from when dominant culture cites its origins. John Smith discusses the "Powhatan Confederacy"[10] in his journals. Unknown to Smith, this confederacy was 30 or so individual tribal groups who spoke Algonquian. The Pamunkey were the tribe with whom Smith interacted the most. While Smith's accounts are factually dubious, some elements have value reguarding the historical understanding of the situation he lived in.

Smith noted several instances where the Pamunkey supplied them with food or led them on expeditions into the interior of the country. In the fall of 1607, Chief Powhatan shared some of their harvest with the starving colonists. These efforts on the part of the Pamunkey were to make peace with the new arrivals, but the English refused to make normal processes of peace. The English were happy to trade and accept charity or guidance by the Pamunkey but would not make bonds of marriage with Native women. By 1609, Powhatan understood that the English had ulterior motives

[9] And all that death is not even mentioning the direct, aggressive, villainous acts of butchery that the Spanish did on purpose in the name of their state and their god.

[10] It is important to note that these are exonyms that are a helpful shorthand. No Indigenous person would have used that terminology.

to peace, and tensions slowly rose. The next 60 years would be marked by a mix of trade and intermittent conflict between English colonists and Native Peoples.[11]

Due to these attempts to help and the subsequent conflicts, the Pamunkey are referred to in an abundance of documents. Most notably, the "Articles of Peace" treaty between King Charles II and several Native "Kings and Queens." The treaty was brokered by the regional governor of Virginia as appointed by the monarchy and mentions several Native leaders. Most notably, the treaty lists the "Queen of the Pamunkey" as the chief leader of all tribes mentioned. This document is the anchor point that serves as indelible proof of the government-to-government relationship that England had with the Pamunkey and is key to their recognition later.

Other people, like the Monacans, became semi-avoidant following a series of early contacts with the English. The Monacan Nation was further inland, and their territory is mentioned by Smith as the Pamunkey refused to take Smith and his men into Monacan lands. Despite these refusals by Pamunkey guides, he had several interactions with Monacans that he noted and even included Monacan villages on a map he drew up. As time went on and colonists pushed inland, the Monacans took several approaches to the encroachment. A sizeable portion of Monacans stayed near the James River in large towns, and some of their smaller settlements were moved or disbanded. This consolidation helped them remain out of the notice of colonizers. Some Monacans left, joining other Siouan tribes or Iroquoian speaking tribes. There is even evidence of some continued egress all the way into Canada.[12]

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[11] "Virginia's Early Relations with Native Americans Colonial Settlement," U.S. History Primary Source Timeline, The Library of Congress, https://www.loc.gov/classroom-materials/united-states-history-primary-source-timeline/colonial-settlement-1600-1763/virginia-relations-with-native-americans/

[12] Jeffery L. Hantman, "The Myth of Monacan Disappearance: Diverse Responses to Colonialism after Jamestown," In *Monacan Millennium: A Collaborative Archaeology and History of a Virginia Indian People* (Charlottesville: University of Virginia Press, 2018) 131. https://doi.org/10.2307/j.ctv5rf6xd.9.

This is not to say that they were hermits though; they established trade towns with colonists in the 1650's and were also mentioned in the "Treaty of Middle Plantation," signed in 1680.[13] Others stayed in the region of what we now call Virginia, specifically in Amherst County. This stealthier approach led to a relative famine of records when compared to the Pamunkey, so much so that there was a perception that the Monacans had "disappeared." This theme of the Monacans disappearing became a damaging trope that would eventually lead to hardship for the Monacan people. The false disappearing narrative was a convenient misinformation and was used as fuel to justify settler colonialism; a form of colonialism where Native peoples are intentionally marginalized and relocated from their historical homelands.[14]

By the time that Thomas Jefferson took the historical stage, he supposed that they were "disappearing," either being subsumed into other tribes or otherwise losing their identity, but that is not at all accurate. In fact, Jefferson even observed and journaled that he saw Natives visiting mounds that were on his property. Years later, he went about excavating those mounds and wrote about his findings. This earned him the title of "The Father of American Archeology."[15] Those mounds have since been determined to be the Monacan village of Manasukapanough.

From here, records of the Monacans get even more sparce as noted by Jennifer Huff, who states, "Tribal-European encounters from the mid-eighteenth to late-eighteenth century are largely non-existent and many believe because there is not a presence of tribal leaders and members because the tribe had been decimated by disease."[16] The result of this gap in records and the

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[13] Ibid.

[14] "Settler Colonialism," Legal Information Institute, Cornell Law School, last modified May, 2022, https://www.law.cornell.edu/wex/settler_colonialism.

[15] Gene Zechmeister, "Jefferson's Excavation of An Indian Burial Mound," *Thomas Jefferson's Monticello*, November, 2011, https://www.monticello.org/research-education/thomas-jefferson-encyclopedia/jeffersons-excavation-native-american-burial-mound/

[16] Jennifer Marie Huff, "A question of Indian identity in the Plecker Era: The Monacan Indian Nation in the Twentieth Century," (Master's Thesis, James Madison University, 2010-2019) VI. https://commons.lib.jmu.edu/master201019/240

narrative of disappearance that was reenforced by Jefferson's journals stuck with tenacity and would serve as fodder for eugenicists and policy-makers to come.

These choices of avoidance versus interaction seem to have had a massive influence on the collective consciousness of the United States, Virginia, and the treatment of the descendants of these two groups, most notably during the twentieth century. In 1912, Virginia founded the Bureau of Vital Statistics (BVS) and selected a vehement eugenicist, named Walter Ashby Plecker, as its director. The original intentions were positive; the BVS was to track birth statistics, ensure sanitary conditions during birth and disseminate birth certificates. However, after the passage of the 1924 Racial Integrity Act, that mission was coopted into a tool of eugenics.[17] Policy at the time was Draconian toward any person who was non-White. The Racial Integrity Act sought to draw hard lines on who was White and who was designated as "Colored," with the primary targets being Black, mixed race, and Native peoples. Policy makers intended to preserve the power structure of Whites over "Colored" people by changing birth certificates and other vital records, however, Plecker felt a particular loathing toward Native Americans.

Plecker did everything in his power to erase Native Americans from the public record. The encyclopedia of Virginia summarizes his approach: "Plecker targeted the Virginia Indian communities by documenting the surnames of Indian families and sending these lists to hospitals, schools, and other public institutions. He believed that "Indian" was an incorrect term and non-reservation Indian people should only be described as colored to erase any Indian identity and heritage in Virginia and to bar Indians or African Americans from entering into the pure white society and institutions."[18] His eagerness to keep White schools White was secondary only to his

[17] Tori Talbot, "Walter Ashby Plecker (1861–1947) - Encyclopedia Virginia," *Encyclopedia Virginia*, https://encyclopediavirginia.org/entries/plecker-walter-ashby-1861-1947/.
[18] Ibid.

work to disallow interracial marriage. He saw Native Americans as "mongrels" and in his perspective they should not have been called Indians because of alleged interbreeding with other races, particularly Black people.

His hostility was doubled toward the Monacans. According to Dr. Samuel Cook, "Plecker developed a particular vendetta against the Monacans who stubbornly asserted their 'Indianness' in the face of increasingly radical persecution." As an act of defiance, they doubled down on their cultural traditions and showed contempt for Plecker and his ilk. In the face of resistance, Plecker turned up the heat, changing birth certificates by hand and harassing Monacans at their homes. In one generation, his paper genocide had succeeded in deeply wounding the documentation of many people and the Monacans more than most.

Plecker's tenure was over in 1946,[19] but the ripples of his actions reverberated throughout many communities.[20] However, being that the epicenter of his wrath was on the Monacans, that was where the damage was most profound. After Loving v. Virginia and the termination of the Racial Integrity Act, the Monacans tried to pick up the pieces. This was not a smooth transition of policy as Historian Samuel Cook points out, "… Officials in the Virginia Office of Vital Statistics had agreed to change the racial designation of Indians requesting such alterations but refused to acknowledge that their office had historically been responsible for deliberate alterations of vital records, effectively denying Virginia Indians the right to identify as anything other than negro."[21] Not only did they not accept responsibility, but they also attempted to charge Native peoples to have their records corrected.

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[19] His life ended not much later. In 1947, he was killed when he was hit by a bus.

[20] There is a preponderance of evidence that Adolf Hitler was inspired by Plecker's work. His ripples are far reaching indeed.

[21] Samuel R. Cook, "The Monacan Indian Nation: Asserting Tribal Sovereignty in the Absence of Federal Recognition," *Wicazo Sa Review* 17, no. 2 (2002): 91–116. http://www.jstor.org/stable/1409576.

While Plecker was wreaking havoc in the records department at the state level, the USFG was not to be outdone. In 1823, the Supreme Court issued their decision of Johnson v. Macintosh which leaned on the "Discovery Doctrine" that allowed colonial powers to lay claim to land that they discovered.[22] This translated to the virtual nullification of any Native lands whatsoever and allowed the USFG to continue to push inland. The USFG had a contradictory policy when it came to Native peoples at this time; fueled by a keen interest in retaining the ability to effectively relocate Native peoples around. Pursuant to that, the tribal governments needed to be somewhat cohesive while simultaneously weakened. By doing this, the USFG could have someone sign agreements that undermined Native authority while presenting an air of legitimacy. According to Hagan, "The [US], although it might find the situation administratively convenient, had no intention of perpetuating tribalism. Assimilation of the Indian into American society was the long-range objective…"[23]. Recognition at this time was primarily a tool of colonialism.

All of this history of settler colonialism, biological warfare, displacement, and erasure towards the ancestral keepers of Turtle Island by the colonial settlers turned United States, has colored the perception of reality regarding the history of this place. That failure of perception bleeds into the legal fabric of the USFG. Even when the leaders of that government have the best intentions, they often still fall short or continue to insult the Native peoples of this land. 500 years of suffering struggling, and state building have left indelible images of Native peoples and has shaped the legal framework that the USFG.

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[22] "Supreme Court Rules American Indians Do Not Own Land," Timeline of Native Voices, National Library of Medicine, . https://www.nlm.nih.gov/nativevoices/timeline/271.html.

[23] William T. Hagan, "Tribalism Rejuvenated: The Native American Since the Era of Termination," *The Western Historical Quarterly* 12, no. 1 (1981): 6. https://www.jstor.org/stable/969163

THE ODDS: THE RECOGNITION PROCESS

Title 25 (T25) is the governing document for interactions between the USFG and native peoples including the process for recognition. Because it covers so much content it is a leviathan of a legal document. To save the reader's attention, this section is going to focus on the pertinent issues regarding FR and in basic terms introduce the battlefield on which Native peoples must contend for their recognition. This section is going to focus on a very specific part of that document and make summary of the most relevant information. T25, Chapter 1, Subchapter F,[24] part 83 is the governing document for recognition requirements.[25] Part 83 lists six criteria for a successful application, and all six must be met or the Office of Federal Acknowledgement (OFA) will not recognize a petitioning group per Section 83.11. The six criteria are:

1. Non-native records/sources prove continuity from 1900 forward.
2. Groups must prove they have a distinct community with 50%+ having Native genealogy.
3. The applicant group must prove they had/have political influence over its members.
4. The applicant group must submit a governing document.
5. The group seeking recognition must not be a part of another recognized group.
6. The group cannot apply this way if they have been Congressionally Terminated.

These six demands, while seemingly simple, may be more difficult than they appear. Applicant Group (AG) reference tribal, state, and federal documents, as well as published research from historians, archeologists, and anthropologists to offer a body of evidence that can meet the OFA's threshold for proof. Once the AG has assembled their petition, including a written narrative, body

[24] National Archives, "eCFR: 25 CFR Chapter I Subchapter F - Tribal Government," 2022. Ecfr.gov https://www.ecfr.gov/current/title-25/chapter-I/subchapter-F.

[25] T25 dictates all aspects of interactions between the Fed and Native Governments. CH1 regulates BIA Office of Federal Acknowledgement (OFA), Subchapter F deals with Tribal Governments

of evidence, citations of supporting documentation, and a certification stating that this is an official documented petition, the process can begin in earnest.[26]

It is vital to note a few things at this point. First, the burden of proof is on the AG. They are responsible for doing research, assembling documents, and submitting a petition packet according to OFA directions. Second, the OFA is going to assess the evidence submitted by the AG and will use their own researchers to challenge the claims using historical records. The OFA will frequently request clarification or more proof when they see weaknesses, and the AG is responsible for communicating back and finding more evidence. During that time, the process is paused to allow response. There are many points at which an application can be bounced back to the AG, or the application can be denied from lack of evidence or lack of response. Each time that the AG or OFA submits something, there are 30 days to six months[27] to return communications. Because of this glacial pace of communication, applicants need to understand that this process takes years, if not decades; during that time, the rules can be changed, like what happened in 2015.[28] Part 83.10 (1) specifically says: "The Department will not require conclusive proof of the facts relating to a criterion in order to consider the criterion met," meaning that the department is not supposed to nitpick and must find a balance between conclusive proof and understanding the historical context that applicants have gone through.

The OFA reviews evidence in clusters. The first cluster verifies criterion: Governing Document, Percentage of Descendants of Native Ancestry, that they do not belong to another recognized group, and Termination Status. The second verification is the same procedure but focuses on verifying Indian Entity Identification, Distinctive Community, and Political Authority

[26] Section 83.21

[27] Section 83.22 83.32 the timing varies depending on what kind of action is being responded to or if a determination is issued.

[28] Section 83.7 (b) there is a grandfathering clause, but it is a one time "opt-in" decision. If the AG doesn't make a response to a change, they will be subject to the new requirements.

over time. The OFA will notify the AG if they need more information or if the AG is outright disqualified in the case of Termination Criteria. If the OFA decides that there is not enough information, the AG can decide to either submit more information, withdraw their petition, or have the OFA proceed with insufficient evidence. If the AG fails to respond within the time limits, or decides that OFA should continue without more information, their case will be determined to be a negative outcome, and the AG petition will fail. There is a lot more to this process, but it gets anachronistic and has questionable relevance to the subject at hand; therefore, we shall move on to the cases made by the Pamunkey Indian Tribe and the Monacan Nation.

OVERCOMING THE ODDS

As stated in the introduction, the Pamunkey achieved their recognition through the regular channel, that is the BIA via the OFA. Under the leadership of Chief Kevin Brown, the Pamunkey submitted a letter of intent to make their case on June 4, 2009.[29] The Pamunkey submitted their original petition to the OFA on October 14, 2010. However, in April 2011, the OFA sent the original petition back to the Pamunkey with requests for more information, organizational editing of the petition, and modifications of their governing document.[30] There is also documentation of minutes of a phone call between the Tribe and the OFA, where the OFA clarified what it needed and provided options for how to meet those needs.[31] The Pamunkey revised the petition and successfully proved their case. The BIA made its final determination July 12, 2015.[32] On January 28, 2016, the Pamunkey became the first group in what is now the Commonwealth of Virginia to be federally recognized. It only took 30 years and approximately $2 million.[33]

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[29] Pamunkey Indian Nation, *Pamunkey Indian Tribe to Bureau of Indian Affairs,* June 18, 2009, letter, from the Bureau of Indian Affairs, https://www.bia.gov/sites/default/files/dup/assets/as-ia/ofa/petition/323_pamunk_VA/323_loi.pdf. (Note that this was not the first attempt to become recognized, they had been trying since at least 1990.

[30] U.S. Department of the Interior, Bureau of Indian Affairs, "Petitioner #323: Pamunkey Indian Tribe, VA", Indian Affairs. 2016. Bia.gov. https://www.bia.gov/as-ia/ofa/323-pamunk-va

[31] ibid

[32] ibid

[33] Heim, "A renowned Virginia Indian Tribe Finally Wins Federal Recognition,"

The Monacans had a substantially different experience, mostly because of Plecker. The major difference was that the Pamunkey had a reservation recognized by the Commonwealth of Virginia, and that insulated them from some of Plecker's administrative genocide; meanwhile, the Monacan Nation had no such land or the protections that reservations provided. This interruption of accurate public records made it de facto impossible to meet the OFA requirement of tracing genealogy to 1900 or further. Dr. Karenne Wood spearheaded the effort to collect this genealogy. She was synopsized in an interview with a local newspaper, CVille, "The Monacan Indian Nation has a set of genealogical documents it uses to determine membership, but that wasn't enough for the BIA. Wood worked for years compiling proper documentation for the Monacan Indian Nation, and she says it was difficult for many reasons: because of how the Racial Integrity Act legally changed their Indian identity, because their people were not well-documented by colonists and because many of the courthouses and churches that held official records had been lost in a fire."[34]

Faced with the impossibility that lay at their feet, the Monacan leadership had to go back to the drawing board. They could petition in US Congress for congressional recognition, but that option comes with its own pitfalls and slogs. It requires hiring lobbyists, forging political relationships with legislators, and petitions to state leaders. Lobbying can take years and is incredibly expensive, and without support from state leadership, it is likely money wasted. In 1999, six AG's consisting of the Chickahominy Indian Tribe, the Chickahominy Indian Tribe—Eastern Division, the Upper Mattaponi Tribe, the Rappahannock Tribe, Inc., the Monacan Indian Nation, and the Nansemond Indian Tribe[35] pooled their efforts to form the "Virginia Indian Tribal Alliance

[34] Erin O'Hare, "After Inhabiting Virginia Land For 10,000 Years, The Monacan Indian Nation Finally Receives Federal Recognition," *C-VILLE Weekly,* March 18, 2018, https://www.c-ville.com/inhabiting-virginia-land-10000-years-monacan-indian-nation-finally-recevies-federal-recognition/

[35] U.S. Congress. House, Natural Resources Committee, *Tribal Recognition Act of 2015*, 114th Congress, 2022. 2d sess., H. Rep. 114-847, https://www.congress.gov/bill/114th-congress/house-bill/3764/text?s=1&r=22&q=%7B%22search%22%3A%22S+222%22%7D

for Life" (VITAL). VITAL worked together through the legislative process for almost twenty years, laying groundwork and rallying support for the cause.

After an incredible amount of work, the stage was finally set in 2017. Rob Wittman, a Republican Virginia congressman, introduced House Resolution 984 "The Thomasina E. Jordan Indian Tribes of Virginia Federal Recognition Act of 2017," where it passed by voice vote.[36] From there, it went to the Senate, where Democrats Tim Kaine and Mark Warner saw it pass by unanimous consent on Jan 11, 2018, and President Trump signed it into law Jan 29, 2018.[37] This was an incredible step for these groups and can serve as a model for other Indigenous organizations to rally together and find a path to success, whereas they might be cut off in the BIA/OFA process. However, it is not without downsides.

Section (d) of each title granting Congressional Recognition to an AG stripped them from hosting gaming facilities. Miss Teresa Pollack in an interview said, "Because we went the congressional route, concessions needed to be made to get enough of the legislators to approve, sign on or not vote against the bill. That is the horse trading of United States politics. The Virginia delegation was very concerned about the possibility of gaming, and the tribal nations really didn't have an interest in doing that at the time. Therefore, we settled for removing the provision of gaming."[38] This meant that a commonly used economic tool of recognized groups had to be sacrificed to allow political viability for the members of VITAL. While the Pamunkey Tribe has been able to begin construction on a casino, the Monacans had to get creative. According to Teresa Pollack: "The Monacan Nation is looking for innovative ways for economic development." … "We

[36] The bill was named for a prominent Mashpee Wampanoag activist and first Indigenous American to serve the US Electoral College in 1988.
[37] Siobhan McGirl, "Monacan Indian Nation Celebrates Federal Recognition," *WBDJ7,* January 7, 2018, https://www.wdbj7.com/content/news/Monacan-Indian-Nation-celebrates-federal-recognition-471865053.html
[38] Teresa Pollak, email correspondence Received by David T. Watkeys, Oct. 12, 2022.

are working with Indian Health Services, and a 13,000 square foot clinic is being built at this time. Hopefully to be open this time next year."[39]

The successes of these Native groups are incredible feats of leadership, cooperation, and legislative action. The Pamunkey were able to assert their sovereignty through the BIA, meeting an extremely high bar of evidence. Likewise, it is mind boggling that VITAL succeeded with a bipartisan bill under unanimous consent during one of the most politically divisive times in American history. Both victories are important case studies in their own way and hopefully these successes inspire effective action to see more Native groups have their sovereignty recognized. Recognition is not the end of the road though; in fact, recognition is just one step on that road. These Native peoples must find economic routes that will allow them to thrive and meet the goals of their organizations.

CONCLUSION

At this point, a reader may say to themselves: "Clearly there can be success in this process, so why even write on this subject?"[40] Bluntly, the process is cumbersome, expensive, and slow. The success of these petitions shows a change; however, as Americans, we need to look at the processes of our government and think critically about if what we are doing is the best way. If we are not doing this ideally, what can we change to make it better?

First, is it necessary to have such a difficult process for recognition? According to Cook, this is problematic: "…as many critics have aptly noted these criteria reflect essentialist and contradictory notion based on reviled images of what constitutes an "Indian" and a "Tribe" and ignore the fluid character of tribal entities and social configurations."[41] American perceptions of

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[39] Ibid.
[40] Thank you for your timely question, hypothetical strawman/reader.
[41] Samuel R. Cook, "The Monacan Indian Nation: Asserting Tribal Sovereignty in the Absence of Federal Recognition," 93. http://www.jstor.org/stable/1409576.

Native peoples are colored by centuries of misinformation, misunderstanding, and outright propaganda. Assumptions about what a Native person must be are unhelpful for understanding these cultures and harmful to the development of those Native groups.

The same can be said for the kinds of evidence that the USFG is looking for. The kinds of documents that they require as proof are largely euro- or colonizer-centric. Generally speaking, Native people's histories, traditions, and forms of communication were not written down.[42] Kidwell and Velie have this perspective: "Indian ways of telling their past are inherently different from European ways of writing history; Indian voices must be heard and their understanding of their interactions with Europeans must be part of historical accounts." This kind of difference of perception of history is a major preventative factor in the path of many AGs. Frankly, even the euro/colonizer methods are deeply fallible,[43] destructible, or constantly eroding. For example, the requirement for 50%+ of the group to be married to other tribal members is subject to change within a generation. This seems like a flimsy and arbitrary requirement.

Without a doubt, the most important thing that can be done is the intentional incorporation of Native voices into this discussion. Kidwell and Velie have noted that: "The fact that native Americans did not have written languages has meant that their viewpoints have long been excluded from the academic study of history, which principally relies on written records." To answer that deficiency, two things must be done. First, the BIA should be more conducive to ethnohistorical upstreaming. In other words, it should use the strategies of history and anthropology to understand cultures as they currently are and how they once were. These methodologies establish continuity between contemporary societies to their ancestors. Ethnohistory understands communities as

[42] Clara Sue Kidwell and Alan Velie, *Native American Studies*, (Edinburgh: Edinburgh University Press, 2005) http://www.jstor.org/stable/10.3366/j.ctvxcrbxb

[43] IE Plecker, Termination Era, and losses in fires.

dynamic living things, not static effigies of what outside observers expect. This is the difference between preserving a culture and preserving a stereotype.

To conclude, the final and most vital change that must be made is to alter the way these policies are crafted by cementing into being, places of authority from which Native leaders can have an impactful voice within the federal government, especially regarding recognition. Arguably, this has already begun; the current Secretary of the Interior Deb Haaland is the first Native American to serve as a cabinet secretary.[44] This is an incredible benchmark in the growth of influence of Native peoples of the United States. With that position comes a change in the balance of power, and it places an important emphasis that the rightful recognition is not a USFG versus Native fight but rather is a collaborative effort between the Federal Government and the Native peoples. Secretary Haaland's influence is a necessary one, but more Native inclusion into the USFG is profoundly essential.

If Americans can find ways to support Native voices and Native communities, there is a chance we can begin to undo some of the damage done over the last centuries. With leadership from Native peoples, we can work together to lay the groundwork for a brighter future. Mark Parkman, a Cherokee Elder, recently told my class: "Do what work that is yours to do. Be a friend and help others carefully. The key is to pay attention to see what needs done." Hopefully this is a point where our government is paying attention and is prepared to make wise changes.

[44] "Office of The Secretary," Doi.Gov, 2021, https://www.doi.gov/office-of-the-secretary#:~:text=SecDebHaaland%20on%20Instagram-,Meet%20the%20Secretary,a%2035th%20generation%20New%20Mexican.

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